

Ramhit v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 18 December 2019 · Writ-C No. 41965 of 2019 · Writ-C No. 41965 of 2019 · **Writ disposed of; petitioner directed to appear before the Executive Engineer for a speaking final order; coercive recovery stayed seven weeks; Section 127 appeal preserved.**

HEADNOTE

Without examining whether recovery notices of 11.10.2019 and 22.10.2019 complied with the U.P. Electricity Supply Code, 2005, the Court disposed of the writ by directing the consumer to appear before the Executive Engineer with objections, the Engineer to pass a speaking final order within four weeks, a short stay of coercive recovery, and a Section 127 appeal if the consumer is aggrieved by that final order.

FACTUAL SUMMARY

Ramhit sought certiorari to quash recovery notices dated 11.10.2019 and 22.10.2019 issued by the Executive Engineer, Electricity Distribution Division-II, Purvanchal Vidyut Vitran Nigam Ltd., Prayagraj. He alleged that the respondents were taking coercive recovery action without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not try the notices on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to speaking final order and section 127 appeal

HOLDING

Taking a lenient view, the Court did not quash the recovery notices. It directed the petitioner to appear on 6.1.2020 before the Executive Engineer with his objection and evidence; the Engineer shall thereafter pass a speaking and reasoned final order within four weeks. Coercive action is stayed for seven weeks or until disposal of the objection, whichever is earlier; default in filing the objection vacates the stay, and non-appearance on the date fixed revives the recovery citation. If aggrieved by the final order, the petitioner may appeal under Section 127 of the Electricity Act, 2003. The writ stands disposed of. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127

The Court did not decide the Supply Code or hearing challenge on merits. It relegated the consumer to a speaking final order by the Executive Engineer and, if still aggrieved, to the statutory appeal under Section 127. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY NOTICES VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR WERE ISSUED WITHOUT OPPORTUNITY OF HEARING

Left to the Executive Engineer's speaking final order and, if the consumer remains aggrieved, to the Section 127 appeal. ¶ 1